



U.S. Citizenship  
and Immigration  
Services

## Torch API Program: Developer Portal Affidavit Form

How to submit the Developer Portal Affidavit form:

- Complete the form online
- Print the completed document
- Sign and date with black or blue ink
- Email to [developersupport@uscis.dhs.gov](mailto:developersupport@uscis.dhs.gov)

In which country is your development team based?

\* ☒ ) U.S. and its territories

( ☐ ) Outside the U.S. and its territories

### Terms of Use

Review our [Terms of Use](#).

( ☐ ) I agree to the Terms of Use\*

### Primary Contact

First name\*: \_\_\_\_\_

Last name\*: \_\_\_\_\_

Email\*: \_\_\_\_\_

## About your company or organization

Company or organization name\*: \_\_\_\_\_

Phone number : \_\_\_\_\_

Front-end name of application (if different from organization name):  
\_\_\_\_\_

Notification email for API status updates\* :  
\_\_\_\_\_

(Using a group or distribution email address may ensure that messages are received and retrievable. The provided email address may be updated later.)

What is your business' homepage URL?\*:  
\_\_\_\_\_

Our requirements for privacy policies and terms of service are listed below.

|                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Desktop Readability</b>         | <b>Does the text formatting meet all of the following requirements for desktop readability?</b> <ul style="list-style-type: none"><li>▪ Do the policies have a grade reading level of 12 or below?</li><li>▪ Are the policies free of obvious typographical errors?</li><li>▪ Do text and background colors meet minimum <a href="#">WCAG</a> contrast requirements of at least 4.5:1?</li><li>▪ Does the text formatting meet the following requirements?<ul style="list-style-type: none"><li>▪ Font size is 14px or larger</li><li>▪ No long, unbroken paragraphs</li><li>▪ No ALL-CAPS paragraphs (a sentence or two is OK)</li><li>▪ No run-on sentences</li><li>▪ No narrow column widths</li></ul></li></ul> |
| <b>Mobile Readability</b>          | <b>Does the text formatting meet all of the following requirements for mobile readability?</b> <ul style="list-style-type: none"><li>• Font size is 14px or larger</li><li>• No long, unbroken paragraphs</li><li>• No ALL-CAPS paragraphs (a sentence or a word or two is OK)</li><li>• No run-on sentences</li><li>• No narrow column widths</li></ul>                                                                                                                                                                                                                                                                                                                                                            |
| <b>Data Retention and Deletion</b> | <b>Do your terms of service and/or privacy policies:</b> <ul style="list-style-type: none"><li>• Give users an easy way to request permanent deletion of their data.</li></ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

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|-----------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                   | <ul style="list-style-type: none"> <li>• State how soon data deletion will happen after the user makes the request.</li> <li>• Comply with <a href="#">California Consumer Privacy Act (CCPA)</a>, if applicable</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Privacy and Data Practices</b> | <p><b>Do your terms of service and/or privacy policies:</b></p> <ul style="list-style-type: none"> <li>• Define the specific types of data collected, such as geolocation data, financial information, medical information, a user's contacts, etc.</li> <li>• Clearly describe how data will be used, including the sharing of de-identified, anonymized, or pseudonymized data.</li> <li>• Name the entities with which data is shared, including third parties, marketers, partners, etc., and clearly indicate how these entities use this data.</li> <li>• State that no data is sold, for profit or other monetary transactions.</li> <li>• Specify whether data is sold, sold for profit or other monetary transactions."</li> <li>• Inform users about their data-sharing choices and the risks, benefits, and limitations of data sharing.</li> <li>• Specify how data sharing could have an impact on others, such as the impact of sharing genetic or family history information.</li> <li>• Clearly state that third-party use or disclosure of user information (including de-identified, anonymized, or pseudonymized data) is prohibited for any reason without active consent from the user.</li> <li>• Indicate that third parties are bound to the terms and conditions in your privacy policy.</li> <li>• Specify that if there is a data breach, you will notify the user and provide instructions for further actions they may take, if any.</li> <li>• Specify your data retention policy, including how long you will hold onto data if the account is dormant.</li> <li>• Include instructions for how the user can permanently delete their data stored with your app/company.</li> <li>• Specify what will happen to a user's data if there is a transfer of ownership or if your company ends or sells its business. You must clearly indicate in your policy that the new company's policies will align with yours, or provide the user one of these options:</li> <li>• Securely dispose of, transmit, or download their health information.</li> <li>• Specify how users can close their account?</li> <li>• Indicate that you will notify your users of changes in ownership.</li> <li>• Specify that you will get active consent from users when changes are made to privacy policies and terms of service.</li> <li>• Clearly state how you will get active consent for policy changes and provide users with plain-language summaries of what has changed.</li> </ul> |

( ☐ ) I agree that our Terms of Service or Privacy Policy reflects these identified provisions or will be appropriately updated before we schedule our demo and are granted production access.

( ☐ ) I certify that we will store your production key and/or OAuth credentials securely so as not to risk unauthorized exposure.

By signing this document, you confirm you have read and accept our Terms of Use. You confirm your Terms of Service and Privacy Policies meet the conditions listed above. You confirm the information provided to be true and accurate.

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

If you have questions for us, let us know by contacting us through our support page.